



**THE POLICE COMMISSIONER
CITY OF NEW YORK**

**MEMORANDUM IN SUPPORT OF NYPD'S DEVIATION FROM
THE DISCIPLINARY SYSTEM PENALTY GUIDELINES**

Re: Disciplinary Case No. 2022-27210 / PODS Case No. C-031848 regarding Police Officer Tian Jiang, Tax No. 967127

Date: January 26, 2026

This disciplinary matter was investigated by the Civilian Complaint Review Board ("CCRB") which involved allegations that Police Officer Jiang stopped and issued summonses to two individuals without sufficient legal authority, was discourteous and used offensive language towards an individual, failed to provide his name to an individual, and failed to provide his shield number to an individual. CCRB has determined that a downward deviation from the Disciplinary System Penalty Guidelines is warranted.

I concur with the downward deviation for the reasons articulated by CCRB in the attached correspondence.

Therefore, a penalty consisting of the issuance of a Schedule "A" Command Discipline with the forfeiture of five (5) vacation days, as negotiated by CCRB, will be imposed in this matter.

A handwritten signature in black ink, reading "Jessica S. Tisch".

Jessica S. Tisch
Police Commissioner



ERIC L. ADAMS
MAYOR

CIVILIAN COMPLAINT REVIEW BOARD
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MOHAMMAD KHALID
INTERIM CHAIR

April 22, 2025

The Honorable Jessica Tisch
Police Commissioner
New York City Police Department
One Police Plaza
New York, NY 10038

Re: CCRB v. Police Officer Tian Jiang
(Tax Reg #967127, CCRB #202103010)

Commissioner Tisch:

A negotiated settlement for Command Discipline A and the forfeiture of FIVE (5) vacation days was agreed upon and signed by all parties on March 12, 2025. Assistant Deputy Commissioner - Paul M. Gamble Sr., endorsed the negotiated settlement on April 22, 2025.

At approximately 2:10 a.m. on May 15, 2021, Police Officer Tian Jiang and another officer from the Transit Bureau District 3 stopped [REDACTED] and [REDACTED] at the 96th Street Subway Station in Manhattan after observing Mr. [REDACTED] and Mr. [REDACTED] carrying brown paper bags believed to contain open containers of alcohol. Mr. [REDACTED] and Mr. [REDACTED] both received summonses for open containers.

Officer Jiang and his fellow officer stated that they stopped Mr. [REDACTED] and Mr. [REDACTED] after they observed the two men exit the subway station each carrying an unknown beverage in brown paper bags. Neither officer confirmed the contents of the bags but stated they believed it was alcohol because of the size and shape, time of occurrence, and that Mr. [REDACTED] and Mr. [REDACTED] smelled of alcohol after being stopped. Neither officer asked to see what was in the bags and did not make any direct observation of Mr. [REDACTED] and Mr. [REDACTED] with open containers of alcohol.

Officer Jiang's presumption that Mr. [REDACTED] and Mr. [REDACTED] possessed open containers does not meet the threshold of probable cause of violating the NYC Administrative Code because no measures were taken to verify the contents of the bags contained beverages with over .005 alcohol. This makes the summonses that Mr. [REDACTED] and Mr. [REDACTED] received unlawful.

While issuing Mr. [REDACTED] and Mr. [REDACTED] summonses and while handing them back their identification, Officer Jiang told Mr. [REDACTED] and Mr. [REDACTED] "You all look the same." It is undisputed that Officer Jiang told Mr. [REDACTED] and Mr. [REDACTED] "You all look the same." The investigation does not credit Officer Jiang's claim that the statement was related to New York state identification cards. A reasonable interpretation of the phrase "You all look the same" in the context of the conversation recorded on BWC is more consistent with a reference to Mr. [REDACTED] and Mr. [REDACTED] appearances as Mr. [REDACTED] alleged. The investigation concluded by a preponderance of the evidence that Officer Jiang's remark violates the NYPD Patrol Guide procedure for civilian interactions and that he made an Offensive and Discourteous remark to Mr. [REDACTED]

During this time, an unidentified individual approached the officers and observed their interaction with Mr. [REDACTED] and Mr. [REDACTED]. After the officers completed the summonses for Mr. [REDACTED] and Mr. [REDACTED], the subway station closed, and Officer Jiang and his fellow officer ejected the unidentified individual from the station and followed him outside. Once outside, the officers engaged in a conversation with the individual, Mr. [REDACTED] and Mr. [REDACTED]. The unidentified civilian asked Officer Jiang for his name and badge number, which Officer Jiang did not provide.

Following this interaction, the individual, Mr. [REDACTED] and Mr. [REDACTED] left the incident location and had no further contact with the officers. No arrests were made. Mr. [REDACTED] and Mr. [REDACTED] both received summonses for open containers. No other summonses were issued.

NYPD disciplinary guidelines indicate that for Enforcement Action involving Abuse of Discretion or Authority, the mitigated penalty is the forfeiture of ten (10) vacation days, the presumptive penalty is the forfeiture of twenty (20) vacation days, and the aggravated penalty is termination.

The negotiated settlement deviates from NYPD disciplinary guidelines for the charge of Enforcement Action involving Abuse of Discretion or Authority for the following reasons:

Officer Jiang has been an officer for six years. He has no discipline history and has accepted responsibility in this matter. For these reasons, the CCRB deems it appropriate to deviate from the Matrix and recommends the forfeiture of five vacation days for both counts.

Respectfully submitted,
ABaxter

Ashley Baxter, Esq.
APU Prosecutor
Civilian Complaint Review Board
Administrative Prosecution Unit

Cc: John Tynan, Esq.